

In the Supreme Court of the United States

DONALD J. TRUMP, PRESIDENT OF THE UNITED STATES, ET AL., APPLICANTS

v.

AMERICAN FEDERATION OF GOVERNMENT EMPLOYEES, AFL-CIO, ET AL.

**APPLICATION TO STAY THE ORDER ISSUED
BY THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF CALIFORNIA
AND REQUEST FOR AN IMMEDIATE ADMINISTRATIVE STAY**

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PARTIES TO THE PROCEEDING

Applicants (defendants-appellants below) are Donald J. Trump, President of the United States; the Office of Management and Budget; Russell Vought, Director of the Office of Management and Budget; the Office of Personnel Management; Charles Ezell, Acting Director of the Office of Personnel Management; the Department of Government Efficiency; Elon Musk; Amy Gleason, Acting Administrator of the Department of Government Efficiency; the Department of Agriculture; Brooke Rollins, Secretary of Agriculture; the Department of Commerce; Howard Lutnick, Secretary of Commerce; the Department of Defense; Pete Hegseth, Secretary of Defense; the Department of Energy; Chris Wright, Secretary of Energy; the Department of Health and Human Services; Robert F. Kennedy, Jr., Secretary of Health and Human Services; the Department of Homeland Security; Kristi Noem, Secretary of Homeland Security; the Department of Housing and Urban Development; Scott Turner, Secretary of Housing and Urban Development; the Department of Justice; Pam Bondi, Attorney General; the Department of the Interior; Doug Burgum, Secretary of the Interior; the Department of Labor; Lori Chavez-Deremer, Secretary of Labor; the Department of State; Marco Rubio, Secretary of State; the Department of the Treasury; Scott Bessent, Secretary of the Treasury; the Department of Transportation; Sean Duffy, Secretary of Transportation; the Department of Veterans Affairs; Doug Collins, Secretary of Veterans Affairs; AmeriCorps (a.k.a. the Corporation for National and Community Service); Jennifer Bastress Tahmasebi, Interim Agency Head of AmeriCorps; the Environmental Protection Agency; Lee Zeldin, Administrator of the Environmental Protection Agency; the General Services Administration; Stephen Ehikian, Acting Administrator of the General Services Administration; the National Labor Relations Board; Marvin Kaplan, Chairman of the National Labor

Relations Board; William Cowen, General Counsel of the National Labor Relations Board; the National Science Foundation; Brian Stone, Acting Director of the National Science Foundation; the Small Business Administration; Kelly Loeffler, Administrator of the Small Business Administration; the Social Security Administration; Leland Dudek, Acting Commissioner of the Social Security Administration.

Respondents (plaintiffs-appellees below) are the American Federation of Government Employees, AFL-CIO; American Federation of State County and Municipal Employees, AFL-CIO; Service Employees International Union, AFL-CIO; AFGE Local 1122; AFGE Local 1236; AFGE Local 2110; AFGE Local 3172; SEIU Local 1000; Alliance for Retired Americans; American Geophysical Union; American Public Health Association; Center for Taxpayer Rights; Coalition to Protect America's National Parks; Common Defense Civic Engagement; Main Street Alliance; Northeast Organic Farming Association, Inc.; VoteVets Action Fund Inc.; Western Watersheds Project; County of Santa Clara, California; City of Chicago, Illinois; Martin Luther King, Jr. County, Washington; Harris County, Texas; City of Baltimore, Maryland; and City and County of San Francisco, California.

RELATED PROCEEDINGS

United States District Court (N.D. Cal.):

American Federation of Government Employees, AFL-CIO v. Donald J. Trump,
No. 25-cv-3698 (May 9, 2025) (granting temporary restraining order)

United States Court of Appeals (9th Cir.):

American Federation of Government Employees, AFL-CIO v. Donald J. Trump,
Nos. 25-3030, 25-3034 (May 13, 2025) (setting briefing schedule on stay
motion)

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Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of applicants Donald J. Trump, President of the United States, et al.—respectfully files this application to stay the May 9, 2025 order issued by the United States District Court for the Northern District of California (App., *infra*, 11a-52a). In addition, the Solicitor General respectfully requests an administrative stay of the district court’s order.

In this case, the district court entered a nationwide injunction that governs the personnel practices of 21 federal agencies, including 11 Cabinet-level agencies, and grants universal relief that far exceeds anything necessary to remediate the parties’ putative injuries. See, e.g., *Gill v. Whitford*, 585 U.S. 48, 50 (2018) (“a ‘remedy must of course be limited to the inadequacy that produced the injury in fact that the plaintiff has established’”) (quoting *Lewis v. Casey*, 518 U.S. 343, 357 (1996)).

That far-reaching order bars almost the entire Executive Branch from formulating and implementing plans to reduce the size of the federal workforce, and re-

quires disclosure of sensitive and deliberative agency documents that are presumptively protected by executive privilege—and it does all of that based on the extraordinary view that the President lacks authority to direct executive agencies how to exercise their statutory powers to conduct large-scale personnel actions within the Executive Branch. This Court recently intervened to stop a single district judge from undoing the effects of lawful terminations of thousands of government employees. See *Office of Personnel Mgmt. v. American Fed’n of Gov’t Emps.*, No. 24A904 (Apr. 8, 2025). It should take the same course here, where the order sweeps far more broadly—to cover most of the federal government—and restrains the Executive from even *planning* reductions in force pursuant to presidential direction. As this Court has recognized, federal courts “do not possess a roving commission” to “exercise general legal oversight of the * * * Executive Branch[],” *TransUnion LLC v. Ramirez*, 594 U.S. 413, 423-424 (2021)—including its personnel practices. Furthermore, “[i]t clearly is within the President’s constitutional and statutory authority to prescribe the manner in which” his subordinates conduct their business, and “this mandate of office must include the authority to prescribe reorganizations and reductions in force.” *Nixon v. Fitzgerald*, 457 U.S. 731, 757 (1982).

In February, pursuant to his lawful authority to direct executive agencies regarding personnel decisions, President Trump issued an Executive Order directing federal agencies to “promptly undertake preparations to initiate large-scale reductions in force (RIFs), consistent with applicable law,” including laws that “mandate[]” the performance of certain “functions” or “require[]” certain agency “subcomponents.” App., *infra*, 2a. The President’s order rested on firm legal footing and followed in a long historical tradition. For at least about 150 years, Congress has recognized the Executive Branch’s authority to carry out reductions in its workforce as the need

arises, subject to statutory preferences for veteran status and other factors. See 5 U.S.C. 3502; *Hilton v. Sullivan*, 334 U.S. 323, 336-339 (1948). The Executive has repeatedly exercised RIF authority. In 1993, for example, President Clinton ordered all federal agencies with more than 100 employees to “eliminate not less than 4 percent of [their] civilian personnel positions” within three years. Exec. Order No. 12,839, § 1, 58 Fed. Reg. 8515 (Feb. 12, 1993).

Nearly three months after President Trump issued his order, however, several labor unions, advocacy groups, and local governments (respondents) sued the President, almost every executive department, and other federal defendants (applicants) in the United States District Court for the Northern District of California. They sought to enjoin implementation of the Executive Order and a follow-on memorandum (Memo) jointly issued to executive agencies by the Office of Personnel Management (OPM) and the Office of Management and Budget (OMB). The district court quickly granted a universal injunction, captioned as a putative temporary restraining order (TRO), enjoining applicants from planning any future RIFs or proceeding with any existing RIFs pursuant to the Executive Order or Memo, even ones that have no effect on respondents or their members. App., *infra*, 50a. To boot, the court ordered applicants to disclose several categories of RIF-related documents exchanged between agencies and OPM and OMB, without even considering those materials’ deliberative and privileged status. *Ibid*. The district court summarily refused to stay its injunction against the Executive Order and Memo. *Id.* at 52a. The next business day, applicants moved for a stay pending appeal in the Ninth Circuit and requested a prompt ruling, but that court has set a schedule under which briefing will not be complete until May 22—the day before the TRO is set to expire unless extended, *id.* at 50a.

This Court should stay the district court’s order, which suffers from multiple fatal flaws. Although respondents’ evident objective is to prevent the agencies from conducting RIFs, they cannot directly challenge those RIFs in this action, and so they have manufactured an objection to the Executive Order and Memo that provide direction and guidance about the RIFs. Respondents cannot directly challenge the RIFs for at least four reasons: RIFs are indisputably permitted by federal law, see 5 U.S.C. 3502; the Executive Order directs preparation of RIFs only as “consistent with applicable law,” App., *infra*, 2a, an admonition that the Memo repeatedly reaffirmed, see *id.* at 5a; many of the RIFs have not yet commenced; and any challenges to the RIFs themselves are channeled into specialized administrative and judicial review schemes concerning federal employment under the Civil Service Reform Act, 5 U.S.C. 2301 *et seq.*, and the Federal Service Labor-Management Relations Statute, 5 U.S.C. 7101 *et seq.*, see, e.g., *Elgin v. Department of the Treasury*, 567 U.S. 1 (2012). Respondents cannot end-run all those obstacles merely by challenging the Executive Order and Memo instead, for both procedural and substantive reasons.

Procedurally, an objection to the direction and guidance about agency RIFs that the President and OPM and OMB have provided is subject to Congress’s preclusion of district-court jurisdiction over federal employment and labor-management disputes. See *American Fed’n of Gov’t Emps., AFL-CIO v. Trump*, 929 F.3d 748, 761 (D.C. Cir. 2019) (applying the same preclusion principle to claims challenging executive orders involving labor-management relations and employee grievances). And regardless, respondents’ inability to directly challenge agency RIFs does not entitle them to instead attack the Executive Branch’s “whole ‘program’” of RIFs by seeking to enjoin implementation of the Executive Order and Memo government-wide. *Lujan v. National Wildlife Fed’n*, 497 U.S. 871, 894 (1990); see *id.* at 893 (holding that al-

leged “flaws in the entire ‘program’ * * * cannot be laid before the courts for wholesale correction”).

Substantively, moreover, the general directions and guidance contained in the Executive Order and Memo are unquestionably lawful. Because “[t]he entire ‘executive power’ belongs to the President alone,” he must have “‘the power of * * * overseeing[] and controlling those who execute the laws’” on his behalf. *Seila Law LLC v. Consumer Fin. Prot. Bureau*, 591 U.S. 197, 213 (2020) (citation omitted). That includes the power to effectuate policy objectives by directing agencies to exercise their statutory authority to conduct RIFs, subject to the guidance of OPM and OMB, but only in a manner that is fully consistent with law. See *Fitzgerald*, 457 U.S. at 757. The district court turned the constitutional structure upside down by treating as smoking-gun “evidence” of “unlawful action” the prospect that “agencies are acting at the direction of the President and his team.” App., *infra*, 41a. Equally meritless is the district court’s objection that “the President may not, *without Congress*, fundamentally reorganize the federal agencies.” *Id.* at 39a. The Executive Order makes clear that, in proposing RIFs, agencies should ensure that they do *not* eliminate any “subcomponents” that are “statutorily required” or prevent the performance of “functions” that are “mandated by statute or other law,” *id.* at 2a, and the Memo reaffirms that “[a]gencies should review their statutory authority and ensure that their plans and actions are consistent with such authority,” *id.* at 5a. There is no coherent reason why the President needs statutory authorization to direct agencies to conduct RIFs to further a reorganization within the statutory bounds permitted by Congress, let alone when it is undisputed that the agencies could have done the exact same thing unilaterally. And here, respondents fail to allege that a single agency’s organic statute would be violated by any proposed RIFs.

Exacerbating matters, the district court joined the parade of courts entering improper universal injunctions, extending relief far beyond what was necessary to redress respondents’ alleged injuries. It enjoined almost two dozen executive entities, plus anyone acting under the President’s authority, from implementing any RIFs pursuant to the Executive Order or Memo, regardless of whether the termination of the employees at issue would have any effect whatsoever on respondents. App., *infra*, 49a-50a. That abuse of equitable power alone calls for a stay. See *Grupo Mexicano de Desarrollo S.A. v. Alliance Bond Fund, Inc.*, 527 U.S. 308, 327 (1999).

Turning to the equities, the district court’s flawed order inflicts ongoing and severe harm on the government requiring this Court’s intervention. The order interferes with the Executive Branch’s internal operations and unquestioned legal authority to plan and carry out RIFs. More concretely, the order has brought to a halt numerous in-progress RIFs at more than a dozen federal agencies, compelling the government to retain—at taxpayer expense—thousands of employees whose continuance in federal service is determined by agencies not to be in the government and public interest. By broadly enjoining implementation of the Executive Order’s provision merely directing agencies to “undertake preparations” for RIFs, App., *infra*, 2a, 50a, the Order has caused mass confusion throughout the Executive Branch over agencies’ latitude to engage in a wide variety of internal planning and organizational activities. Meanwhile, the court’s disclosure requirement threatens to reveal highly sensitive information that would undermine government operations if disclosed to the public—such as agency plans and strategies for union negotiations and engagement with Congress, as well as proposals for personnel actions that may never be implemented. Although the court has since temporarily paused the disclosure requirement while it conducts an *in camera* review of illustrative documents, it could reinstate that order

as early as next week. D. Ct. Doc. 109 (May 15, 2025).

Neither Congress nor the Executive Branch has ever intended to make federal bureaucrats “a class with lifetime employment, whether there was work for them to do or not.” *Ramspeck v. Federal Trial Examiners Conf.*, 345 U.S. 128, 143 (1953). This Court should stay the district court’s order.

STATEMENT

A. Federal Government Reductions In Force

Federal law expressly recognizes that the government may conduct RIFs, an “administrative procedure by which agencies eliminate jobs and reassign or separate employees who occupied the abolished positions.” *James v. Von Zemenszky*, 284 F.3d 1310, 1314 (Fed. Cir. 2002). Section 3502 of Title 5 directs OPM to “prescribe regulations for the release of competing employees in a reduction in force.” 5 U.S.C. 3502(a). That statute further provides, among other things, for notice of a RIF (generally 60 days) to agency employees and their collective-bargaining representatives, including notice of “any appeal or other rights which may be available.” 5 U.S.C. 3502(d)(1)(A) and (2)(E); see 5 U.S.C. 3502(d)(1)(B) and (3) (additionally requiring 60 days’ notice to certain state and local entities “if the reduction in force would involve the separation of a significant number of employees”). OPM’s detailed and longstanding RIF regulations, 5 C.F.R. Pt. 351, address everything from the order of employee retention to competition for remaining positions. The regulations specify that “OPM may examine an agency’s preparations for reduction in force at any stage” and require “appropriate corrective action.” 5 C.F.R. 351.205. “An employee who has been furloughed for more than 30 days, separated, or demoted by a reduction in force action may appeal to the Merit Systems Protection Board [MSPB].” 5 C.F.R. 351.901.

That statutory and regulatory scheme reflects Congress’s longstanding recog-

nition of federal agencies' authority to engage in RIFs. The first such statute, enacted in 1876, provided a veterans' preference, requiring any department head "making any reduction in force" to "retain those persons who may be equally qualified who have been honorably discharged from the military or naval service of the United States, and the widows and orphans of deceased soldiers and sailors." Act of Aug. 15, 1876, Ch. 287, § 3, 19 Stat. 169; see *Hilton v. Sullivan*, 334 U.S. 323, 336-339 (1948) (summarizing history of veterans' preferences in RIFs). Courts have repeatedly rejected challenges to agencies' decisions to conduct RIFs, recognizing that such reductions are a matter of executive discretion. See, e.g., *Keim v. United States*, 177 U.S. 290, 295 (1900) (statute authorizing RIFs "do[es] not contemplate the retention in office of a clerk who is inefficient, nor attempt to transfer the power of determining the question of efficiency from the heads of departments to the courts"); *Markland v. OPM*, 140 F.3d 1031, 1033 (Fed. Cir. 1998) (an agency is accorded "wide discretion in conducting a reduction in force") (citation omitted).

As World War II concluded, it was widely understood that the federal government would need to shrink dramatically as the Nation shifted to a peacetime footing. Congress enacted the forerunner of 5 U.S.C. 3502 in the Veterans' Preference Act of 1944, which directed that "[i]n any reduction in personnel in any civilian service of any Federal agency, competing employees shall be released in accordance with Civil Service Commission regulations which shall give due effect to tenure of employment, military preference, length of service, and efficiency ratings." Pub. L. No. 78-359, § 12, 58 Stat. 390; see 9 Fed. Reg. 9575 (Aug. 8, 1944) (promulgating Civil Service Commission RIF regulations). In the decades since, the federal government has exercised its authority to conduct RIFs on numerous occasions. In 1993, for example, President Clinton issued an executive order (entitled *Reduction of 100,000 Federal*

Positions) that directed “[e]ach executive department or agency with over 100 employees [to] eliminate not less than 4 percent of its civilian personnel positions * * * over the next 3 fiscal years.” Exec. Order No. 12,839, § 1, 58 Fed. Reg. 8515 (Feb. 12, 1993). The order required “[a]t least 10 percent of the reductions [to] come from the Senior Executive Service, GS-15 and GS-14 levels or equivalent,” and imposed annual benchmarks for the agency RIFs. *Id.* §§ 1, 3.

B. Executive Order 14,210 And The OPM-OMB Memorandum

1. On February 11, 2025, President Trump issued an Executive Order seeking, like President Clinton’s order, to reduce the size of the federal government through RIFs. Exec. Order No. 14,210, 90 Fed. Reg. 9669 (Feb. 14, 2025) (App., *infra*, 1a-3a). The provision of the Executive Order that is most relevant here directs agency heads to “promptly undertake preparations to initiate large-scale reductions in force (RIFs), consistent with applicable law,” and in doing so to prioritize RIFs for “offices that perform functions not mandated by statute or other law.” App., *infra*, 2a. The Executive Order provides for various exclusions, including for military personnel and “functions related to public safety, immigration enforcement, or law enforcement,” and it authorizes further exemptions by agency heads and OPM. *Ibid.* The Executive Order separately addresses agency reorganizations, by directing each agency head to submit a report to OMB that “identifies any statutes that establish the agency, or subcomponents of the agency, as statutorily required entities” and that “discuss[es] whether the agency or any of its subcomponents should be eliminated or consolidated.” *Ibid.*

2. About two weeks later, OPM and OMB jointly issued a memorandum to all executive-branch agencies regarding the implementation of the President’s Executive Order through Agency RIF and Reorganization Plans (Plans). *Guidance on*

Agency RIF and Reorganization Plans Requested by Implementing the President’s “Department of Government Efficiency” Workforce Optimization Initiative (Feb. 26, 2025) (App., *infra*, 4a-10a). The Memo provided guidance on the principles that should inform the Plans, including objectives and priorities like providing “[b]etter service for the American people” and “[i]ncreased productivity.” App., *infra*, 4a-5a. Furthermore, the Memo repeatedly emphasized the need to comply with statutory mandates in conducting RIFs and reorganizations. See, e.g., *id.* at 5a (urging agencies to “focus on the maximum elimination of functions that are not statutorily mandated while driving the highest-quality, most efficient delivery of their statutorily-required functions” and to “review their statutory authority and ensure that their plans and actions are consistent with such authority”).

The Memo directed each agency to submit a “Phase 1” Plan, focusing on “initial agency cuts and reductions,” to OMB and OPM for review and approval by March 13, 2025. App., *infra*, 6a. It explained that “[e]ach Phase 1 [Plan] should identify,” among other things, “[w]hether the agency or any of its subcomponents should be eliminated or consolidated” and the “specific tools the agency intends to use to achieve efficiencies,” such as regular employee attrition or “[a]ttrition achieved by RIFs”—and, as to the latter, “[t]he agency’s target for reductions in [full-time] positions via RIFs.” *Id.* at 7a. The Memo further provided that the agency should next submit a “Phase 2” Plan to OMB and OPM by April 14, 2025, which would “outline a positive vision for more productive, efficient agency operations going forward” and “be planned for implementation by September 30, 2025.” *Ibid.* The Phase 2 Plan would address such matters as the agency’s “proposed future-state organizational chart” and plans for “subsequent large-scale RIFs.” *Id.* at 7a-8a.

C. The Present Controversy

1. Respondents are labor unions, advocacy organizations, and local governments. D. Ct. Doc. 1, at 1 (Apr. 28, 2025). Eleven weeks after the President issued the Executive Order, they brought suit in federal district court against the President, OPM, OMB, the U.S. DOGE Service, and 21 federal agencies—including every Cabinet-level agency except the Department of Education. *Id.* at 20-25. Respondents alleged that the Executive Order exceeded the President’s authority and violated the separation of powers; that the OPM-OMB Memo was likewise *ultra vires* and violated the Administrative Procedure Act (APA), 5 U.S.C. 551 *et seq.*, 701 *et seq.*; and that the agencies’ RIF Plans also violated the APA. See D. Ct. Doc. 1, at 94-104. Respondents sought declaratory and injunctive relief against, and vacatur of, the Executive Order, Memo, and Plans. *Id.* at 104-105. They also filed a motion for a temporary restraining order, supported by a 50-page brief and more than 1300 pages of affidavits and exhibits. D. Ct. Doc. 37 (May 1, 2025); D. Ct. Doc. 70 (May 8, 2025).

The district court held a hearing on Friday, May 9, 2025, and issued a 42-page opinion granting the putative TRO the same day. App., *infra*, 11a-52a. The court concluded that at least some respondents had standing, *id.* at 21a-28a, and it rejected the government’s contention that district-court jurisdiction was precluded by federal statutes channeling these claims related to federal employment to specialized administrative tribunals, see *id.* at 28a-35a. The court then found that respondents were likely to succeed on at least some of their claims. It viewed the Executive Order as *ultra vires* because “the President may broadly restructure federal agencies only when authorized by Congress,” and Congress here has “passed no agency reorganization law for the President to execute.” *Id.* at 38a, 41a. The court also deemed it objectionable that “the agencies are acting at the direction of the President and his

team,” rather than making their own independent judgments “about how [they] should conduct RIFs.” *Id.* at 41a. The court further found the Memo by OPM and OMB unlawful on the ground that those entities lack legal authority to order agencies to terminate their employees or restructure their components. *Id.* at 43a. In addition, the court concluded that OPM and OMB “engaged in rule-making without notice and comment required by the APA, in issuing the [Memo] and in approving the [Plans],” and that respondents faced irreparable harm absent emergency relief. *Id.* at 47a-48a.

Under the district court’s order, 21 agency defendants and anyone else “acting under their authority or the authority of the President” are “enjoined and/or stayed from taking any actions to implement or enforce” the Executive Order or Memo, including any further approval of agency RIF Plans and “any further implementation” of the Executive Order, Memo, or Plans, such as through the issuance or execution of RIF notices and termination of agency employees. App., *infra*, 50a. Although the court acknowledged that its order “provide[d] relief beyond the named parties,” it deemed limiting the relief “impracticable and unworkable, particularly where the agencies’ RIF plans largely remain secret.” *Id.* at 49a. The court provided that the TRO will last through May 23 (unless extended), and it scheduled a preliminary-injunction hearing for May 22. *Id.* at 50a, 52a. The district court refused to consider applicants’ request for a stay, describing such consideration as “pointless.” *Id.* at 52a.

In addition, to gather “more information to evaluate” the agency Plans, the district court ordered OMB and OPM to disclose, by May 13 at 4 p.m.—just two business days later—“the versions of all defendant agency [Plans] submitted to” and “approved by” OMB and OPM, “any agency applications for waivers of statutorily-mandated RIF notice periods,” and “any responses by OMB or OPM to such waiver re-

quests.” App., *infra*, 49a-50a. The court ordered that disclosure despite the fact that respondents had not even requested some of the covered materials and had requested others only during the TRO briefing and hearing, rather than in any formal discovery request. Gov’t C.A. Mandamus Pet. 11. Nor did the court acknowledge applicants’ objection that the Plans were “deliberative agency planning documents.” D. Ct. Doc. 60, at 21 (May 7, 2025). The RIF Plans “include highly sensitive information that would seriously undermine agency operations if they were released.” D. Ct. Doc. 88-1, at 1 (May 11, 2025) (Declaration of Stephen M. Billy, Senior Advisor for OMB).

2. Applicants noticed an appeal of the TRO to the Ninth Circuit on the same day, Friday, May 9, and they filed in the Ninth Circuit a petition for a writ of mandamus as to the discovery order (and the TRO, in the alternative) on the next business day, Monday, May 12. In between, on Sunday, May 11, applicants also moved the district court, with respect to the discovery order, for reconsideration or a protective order. D. Ct. Doc. 88. The court agreed to stay the discovery deadline pending a decision on that motion. D. Ct. Doc. 92 (May 12, 2025). On Thursday, May 15, the court ordered the government to submit agency RIF Plans for four agencies (two each chosen by the government and respondents, respectively) to the court for *in camera* review and to respondents’ counsel by Monday, May 19, pending argument on the applicability of executive privilege at the May 22 hearing. D. Ct. Doc. 109, at 5. Respondents’ counsel were barred from “shar[ing] the plans or their contents with their clients or any third parties unless or until the Court orders otherwise.” *Ibid.*

On Monday, May 12, applicants also filed in the Ninth Circuit an emergency motion for a stay of the TRO pending appeal. Applicants requested that the Ninth Circuit rule by Thursday, May 15, in order to facilitate this Court’s review. But on May 13, the court of appeals set a briefing schedule with the response to the stay

motion due on May 19 and a reply due on May 22. As a result, the Ninth Circuit will not rule on the stay until, at the earliest, the day of the preliminary-injunction hearing and the day before the TRO is set to expire unless extended. In these circumstances, given the irreparable harm that applicants will suffer in the interim, see pp. 28-30, 34-35, *infra*, they seek a stay from this Court. See Sup. Ct. R. 23.3.

ARGUMENT

I. THIS COURT SHOULD STAY THE DISTRICT COURT’S ORDER ENJOINING IMPLEMENTATION OF THE EXECUTIVE ORDER AND MEMO

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Court may stay a district court’s interlocutory order granting emergency relief. See, e.g., *Trump v. International Refugee Assistance Project*, 582 U.S. 571 (2017) (per curiam); *Brewer v. Landrigan*, 562 U.S. 996 (2010); *Brunner v. Ohio Republican Party*, 555 U.S. 5, 6 (2008) (per curiam). An applicant must show (1) a likelihood of success on the merits, (2) a reasonable probability of obtaining certiorari, and (3) a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” “the Court will balance the equities and weigh the relative harms.” *Ibid.* Those factors strongly support relief from the district court’s order enjoining implementation of the President’s Executive Order and the OPM-OMB Memo.¹

¹ As in *Department of Education v. California*, 145 S. Ct. 966 (2025) (per curiam), “several factors counsel in favor of construing the District Court’s order as an appealable preliminary injunction.” *Id.* at 968. Among others, the order “carries * * * the hallmark[] of a preliminary injunction” in that it was supported by a lengthy opinion issued after full briefing (as well as amicus briefs and 1300 pages of affidavits and exhibits submitted by respondents) and an adversary hearing; the court’s “basis for issuing the order is strongly challenged” on the jurisdictional and merits grounds set forth below; and the order inflicts irreparable harm by barring the Executive Branch from managing its internal affairs and workforce. *Ibid.* (quoting *Sampson v. Murray*, 415 U.S. 61, 87 (1974)) (brackets omitted); see *Abbott v. Perez*, 585 U.S. 579, 594-595 (2018). The order’s “TRO” label thus presents no impediment to this Court’s review.

A. The Government Is Likely To Succeed On The Merits

The government is likely to succeed in reversing the district court’s order on both procedural and substantive grounds. Respondents’ claims were not justiciable in district court, and those claims are meritless in any event.

1. Respondents’ claims were not justiciable in district court

As a threshold matter, respondents brought their claims in the wrong forum challenging the wrong actions. The district court lacked jurisdiction over this dispute related to federal personnel actions, and respondents lacked a cause of action to challenge White House direction and guidance about plans for future agency RIFs.

a. “District courts have jurisdiction over civil actions arising under the Constitution and laws of the United States, 28 U.S.C § 1331, but Congress may preclude district court jurisdiction by establishing an alternative statutory scheme for administrative and judicial review.” *American Fed’n of Gov’t Emps., AFL-CIO v. Trump (AFGE)*, 929 F.3d 748, 754 (D.C. Cir. 2019). Such an alternative scheme displaces district-court jurisdiction if it “displays a ‘fairly discernible’ intent to limit jurisdiction, and the claims at issue ‘are of the type Congress intended to be reviewed within the statutory structure.’” *Free Enter. Fund v. Public Co. Acct. Oversight Bd.*, 561 U.S. 477, 489 (2010) (quoting *Thunder Basin Coal Co. v. Reich*, 510 U.S. 200, 207, 212 (1994)) (brackets omitted). That test is satisfied here by the Civil Service Reform Act (CSRA), 5 U.S.C. 2301 *et seq.*, and the Federal Service Labor-Management Relations Statute (FSLMRS), 5 U.S.C. 7101 *et seq.*

i. The CSRA “establishe[s] a comprehensive system for reviewing personnel action taken against federal employees.” *United States v. Fausto*, 484 U.S. 439, 455 (1988). The statute provides that “[a]n employee * * * may submit an appeal to the Merit Systems Protection Board from any action which is appealable to the Board

under any law, rule, or regulation.” 5 U.S.C. 7701(a); see 5 U.S.C. 1214(b) (authorizing the MSPB to issue emergency stay relief). And by longstanding regulation, “[a]n employee who has been furloughed for more than 30 days, separated, or demoted by a reduction in force action may appeal to the Merit Systems Protection Board.” 5 C.F.R. 351.901; see *Alder v. Tennessee Valley Auth.*, 43 Fed. Appx. 952, 956 (6th Cir. 2002) (describing a “reduction-in-force decision” as “a fundamental employment claim subject to MSPB review”), cert. denied, 537 U.S. 1112 (2003). The MSPB can order relief to prevailing employees, including reinstatement. 5 U.S.C. 1204(a)(2), 7701(g). The Federal Circuit has exclusive jurisdiction to review final decisions of the MSPB. 5 U.S.C. 7703(b)(1); see, e.g., *Knight v. Department of Def.*, 332 F.3d 1362, 1364 (Fed. Cir. 2003) (RIF demotion claim). The CSRA also includes the FSLMRS, which governs labor relations between the Executive Branch and its employees. See 5 U.S.C. 7101-7135; *AFGE*, 929 F.3d at 752. The Federal Labor Relations Authority (FLRA) is charged with adjudicating federal labor disputes. 5 U.S.C. 7105(a)(2). Congress has authorized review of the FLRA’s decisions in the courts of appeals. 5 U.S.C. 7123(a).

This statutory framework should have precluded the district court from exercising jurisdiction over respondents’ claims. At bottom, this case is a dispute concerning “employee relations in the federal sector” and “federal labor-management relations,” the subject matters that Congress enacted the CSRA and FSLMRS to govern. *AFGE*, 929 F.3d at 755 (citations and internal quotation marks omitted). The essence of respondents’ suit is a challenge to the legality of preparatory and procedural steps taken by the Executive Branch—principally the President, OPM, and OMB—to plan and facilitate reductions in agency workforces. Because Congress would not have enacted the “‘elaborate’ framework” of the CSRA and FSLMRS for reviewing federal-

employee terminations and labor disputes, *Elgin v. Department of the Treasury*, 567 U.S. 1, 11 (2012) (citation omitted), while allowing an end-run around those procedures in the form of a preemptive district-court action like respondents', the CSRA and FSLMRS statutory scheme evinces a fairly discernible intent to preclude district-court jurisdiction over claims of this nature. See *Free Enter. Fund*, 561 U.S. at 489.

As the district court here admitted, App., *infra*, 29a-32a, numerous courts in recent months and years have applied the same preclusion principle to similar federal-employment suits. See, e.g., *AFGE*, 929 F.3d at 753, 761 (challenge to three executive orders governing collective bargaining and grievance processes); *American Foreign Serv. Ass'n v. Trump*, No. 25-cv-352, 2025 WL 573762, at *8-*11 (D.D.C. Feb. 21, 2025) (challenge to employees' placement on administrative leave); *National Treasury Emps. Union v. Trump*, No. 25-cv-420, 2025 WL 561080, at *5-*8 (D.D.C. Feb. 20, 2025) (challenge to terminations of probationary employees, anticipated RIFs, and deferred-resignation program); *American Fed'n of Gov't Emps., AFL-CIO v. Ezell*, No. 25-cv-10276, 2025 WL 470459, at *1-*3 (D. Mass. Feb. 12, 2025) (challenge to deferred-resignation program); but see *American Fed'n of Gov't Emps., AFL-CIO v. OPM*, No. 25-cv-01780, 2025 WL 900057 (N.D. Cal. Mar. 24, 2025) (asserting jurisdiction over challenge to probationary-employee terminations). Respondents' suit is likewise precluded.

ii. The district court's aberrant jurisdictional analysis was unsound. The court suggested that precluding respondents' suit would "foreclose meaningful judicial review" because they seek to challenge, on a pre-implementation basis, "large-scale reductions in force' happening rapidly across multiple agencies." App., *infra*, 33a. But as the D.C. Circuit explained when rejecting a similar argument in *AFGE*, 929 F.3d at 755-756, this Court's decision in *Thunder Basin* held that district-court

jurisdiction was precluded by a statutory scheme that did not permit pre-enforcement review at all, see 510 U.S. at 212-216. The district court further suggested that it was “unlikely” that Congress intended to channel review of RIF claims because “employees’ rights to appeal a RIF to the Merit Systems Protection Board comes not directly from statute but from regulation,” *viz.* 5 C.F.R. 351.901. App., *infra*, 34a. That makes no sense, however, because Congress itself expressly authorized MSPB review of “any action which is appealable to the Board under any law, rule, *or regulation.*” 5 U.S.C. 7701(a) (emphasis added). So Congress very likely intended for the same channeling requirements to apply to all such actions, regardless of the particular source of the right to appeal to the MSPB.

The district court also emphasized that respondents raise “fundamental questions of executive authority and separation of powers,” “not the individual employee or labor disputes [the MSPB and FLRA] customarily handle.” App., *infra*, 32a, 34a. But this Court has already held that the CSRA channels review of fundamental questions of constitutional law. See *Elgin*, 567 U.S. at 22-23; accord *AFGE*, 929 F.3d at 760-761. For good reason: When the federal government is the employer, practically any employment or labor-management-relations claim can be dressed up in constitutional garb.

The district court further noted that even if the union respondents and their federal-employee members could seek relief under the FSLMRS and CSRA, the other respondents (mainly nonprofits and local governments) could not. App., *infra*, 35a. This Court, however, has previously rejected a similar attempt to narrow the CSRA’s preclusive scope based on the CSRA’s limited remedies. See *Fausto*, 484 U.S. at 447-455 (CSRA precluded an employee’s suit for backpay despite the unavailability of CSRA review). “[I]t is the comprehensiveness of the statutory scheme involved, not

the ‘adequacy’ of specific remedies,” that precludes jurisdiction; accordingly, even where “the CSRA provides no relief,” it “precludes other avenues of relief.” *Graham v. Ashcroft*, 358 F.3d 931, 935 (D.C. Cir.) (Roberts, J.) (citation omitted), cert. denied, 543 U.S. 872 (2004); see *Block v. Community Nutrition Inst.*, 467 U.S. 340, 346-347 (1984). Given that the CSRA precludes federal employees and their unions from themselves going to court even to raise claims or remedies that the CSRA does not recognize, it would be perverse to read the CSRA to permit third parties who are at most indirectly affected by the treatment of employees to bring claims challenging that treatment outside the CSRA process.

b. Regardless of whether the district court had jurisdiction, respondents lack a viable APA or *ultra vires* cause of action to challenge the President’s Executive Order and the OPM-OMB Memo in the abstract, divorced from any agency RIFs. The Executive Order is not agency action subject to review under the APA, because the President is not an agency. *Franklin v. Massachusetts*, 505 U.S. 788, 800-801 (1992). Nor does the Memo constitute “final agency action” subject to APA review, 5 U.S.C. 704—that is, action “mark[ing] the ‘consummation’ of the agency’s decisionmaking process” and “by which ‘rights or obligations have been determined,’ or from which ‘legal consequences will flow,’” *Bennett v. Spear*, 520 U.S. 154, 178 (1997) (citations omitted). In contrast to agency RIFs themselves, nothing in the Memo finally determines rights or obligations or imposes legal consequences. The Memo merely marked the beginning of an iterative process of engagement with executive agencies, setting forth an internal framework for OPM’s and OMB’s subsequent “review and approval” of plans for future agency RIFs and reorganizations. App., *infra*, 6a-7a. Indeed, the Memo does not constitute agency action under the APA at all. Instead, it sets forth a framework for preparation and review of proposed agency RIF plans. Such a gen-

eral programmatic document is not subject to APA review. See *Lujan v. National Wildlife Fed’n*, 497 U.S. 871, 893 (1990).

Furthermore, even assuming that an *ultra vires* action outside of the APA’s framework may sometimes be cognizable, respondents’ *ultra vires* claim is not. Neither the Executive Order nor the Memo directs agencies to take any actions inconsistent with law—they contain express language doing the opposite, emphasizing the need to comply with applicable law. See App., *infra*, 2a-3a (“consistent with applicable law”); see *id.* at 2a (recognizing that RIFs should not prevent the performance of “functions” that are “mandated by statute or other law”); *id.* at 6a (“Agencies should review their statutory authority and ensure that their plans and actions are consistent with such authority.”); *Building & Constr. Trades Dep’t, AFL-CIO v. Allbaugh*, 295 F.3d 28, 33 (D.C. Cir. 2002), cert. denied, 537 U.S. 1171 (2003). Insofar as respondents posit that the Executive Order and Memo could not lawfully provide guidance and direction to agencies in their preparation and execution of RIFs, that is plainly erroneous and cannot support an *ultra vires* claim. See *Pennhurst State Sch. & Hosp. v. Halderman*, 465 U.S. 89, 101 n.11 (1984) (an “officer may be said to act *ultra vires* only when he acts ‘without any authority whatever’”) (citation omitted).

2. Respondents’ claims are meritless

In all events, respondents’ claims are fundamentally flawed on the merits. The President’s Executive Order and the OPM-OMB Memo rest on firm legal footing, consistent with the long historical tradition recognizing the federal government’s authority to conduct RIFs.

a. The legal bases for the Executive Order and the Memo are straightforward. As the government explained below, “federal law expressly permits RIFs, the governing statute expressly directs OPM to promulgate regulations governing RIFs,

and Congress has consistently recognized agencies’ authority to engage in RIFs since the nineteenth century.” App., *infra*, 41a (citation omitted); see 5 U.S.C. 3502; pp. 7-9, *supra*. Even the district court appeared grudgingly to agree. See App., *infra*, 41a (“Maybe so.”). That being so, the President unquestionably had the authority to direct agencies to conduct RIFs, consistent with law, in furtherance of his policy objectives and with the guidance of OPM and OMB.

i. Consider first the Executive Order. In addition to the President’s own broad statutory authority to oversee and regulate the civil service, see, e.g., 5 U.S.C. 3301, the President is empowered by Article II of the Constitution to supervise and direct agency heads in the exercise of their lawful authority. “Under our Constitution, the ‘executive Power’—all of it—is ‘vested in a President,’ who must ‘take Care that the laws be faithfully executed.’” *Seila Law LLC v. Consumer Fin. Prot. Bureau*, 591 U.S. 197, 203 (2020) (quoting U.S. Const. Art. II, § 1, Cl. 1; *id.*, § 3). To that end, the President has authority to exercise “‘general administrative control of those executing the laws,’ throughout the Executive Branch of government, of which he is the head.” *Allbaugh*, 295 F.3d at 32 (quoting *Myers v. United States*, 272 U.S. 52, 164 (1926)). Indeed, this Court has applied this principle specifically in the RIF context. In *Nixon v. Fitzgerald*, 457 U.S. 731 (1982), the Court explained that “[i]t clearly is within the President’s constitutional and statutory authority to prescribe the manner in which” his subordinates conduct their business, and “this mandate of office must include the authority to prescribe reorganizations and *reductions in force*.” *Id.* at 757 (emphasis added).

Our constitutional structure presumes that federal officers and agencies will be “subject to [the President’s] superintendence,” *The Federalist* No. 72, at 487 (Alexander Hamilton) (Jacob E. Cooke ed., 1961), and the President concomitantly “bears

responsibility for the actions of the many departments and agencies within the Executive Branch,” *Trump v. United States*, 603 U.S. 593, 607 (2024). Federal agencies depend for their “legitimacy and accountability to the public [on] a ‘clear and effective chain of command’ down from the President, on whom all the people vote.” *United States v. Arthrex, Inc.*, 594 U.S. 1, 11 (2021) (citation omitted); see Elena Kagan, *Presidential Administration*, 114 Harv. L. Rev. 2245, 2331-2340 (2001). There is thus nothing plausibly unlawful about an Executive Order directing agency heads to “promptly undertake preparations to initiate large-scale reductions in force” consistent with all applicable statutory restrictions. App., *infra*, 2a.

ii. The Memo is similarly sound. In the main, it provides the agencies with high-level guidance, setting forth principles that agency RIF Plans “*should* seek to achieve,” tools that agencies “*should* employ” in developing Plans, and information that Plans “*should* include.” App., *infra*, 4a-5a, 7a (emphasis added). Insofar as the Memo issues directives to agencies, such as by instructing them to submit Plans to OPM and OMB “for review and approval” by specified dates, *id.* at 6a-7a, it falls comfortably within OPM’s and OMB’s statutory authorities and the process established by the President in the Executive Order.

As for OPM, that agency has express statutory authority, as discussed earlier, to “prescribe regulations for the release of competing employees in a reduction in force,” 5 U.S.C. 3502(a), and other statutes supplement that authority, see, *e.g.*, 5 U.S.C. 1301 (OPM “shall aid the President, as he may request, in preparing the rules he prescribes under this title for the administration of the competitive service”); 5 U.S.C. 1302(b) (OPM “shall prescribe and enforce regulations for the administration of the provisions of this title, and Executive orders issued in furtherance thereof, that implement the Congressional policy” governing, *inter alia*, preferences for employee

“retention”); see also 5 U.S.C. 1103(a)(5)(A) and (c), 1104(b)(2). OPM exercised those authorities in promulgating detailed, Executive-wide RIF regulations, 5 C.F.R. Pt. 351, whose validity appears to be unquestioned. Those regulations provide for OPM to “establish further guidance and instructions for the planning, preparation, conduct, and review of reductions in force” and to “examine an agency’s preparations for reduction in force at any stage,” 5 C.F.R. 351.205, which squarely encompasses OPM’s directives here. In short, OPM’s RIF regulations “mandate a continuing exchange between each agency and the OPM.” *National Treasury Emps. Union v. Devine*, 733 F.2d 114, 120 (D.C. Cir. 1984). So in directing agencies to prepare RIF plans, App., *infra*, 2a, the President’s Executive Order clearly presumed that agencies should follow OPM’s guidance.

As for OMB, that office is likewise statutorily authorized to “establish general management policies for executive agencies” and “[f]acilitate actions by * * * the executive branch to improve the management of Federal Government operations and to remove impediments to effective administration.” 31 U.S.C. 503(b) and (b)(4). Moreover, the Executive Order expressly directs agency heads to submit reorganization plans to the Director of OMB. App., *infra*, 2a.

b. The district court’s contrary reasons for enjoining the Executive Order and Memo view do not withstand analysis.

Most egregiously, while the district court did not meaningfully dispute that executive agencies may lawfully conduct RIFs, see App., *infra*, 41a, it treated as “evidence” of “unlawful action” the prospect that “the agencies are acting at the direction of the President and his team” in planning and executing RIFs, *ibid*. That contention turns Article II upside down, for the reasons set forth above. See *Trump*, 603 U.S. at 607; *Seila Law*, 591 U.S. at 203. The court articulated no reason why agency RIFs

would somehow be exempt from the fundamental constitutional principle that the President, as the repository of the entire executive power, may direct his subordinates in exercising their lawful functions. See *Fitzgerald*, 457 U.S. at 757.

The district court also emphasized the President’s lack of operative “statutory authority to reorganize the executive branch.” App., *infra*, 36a; see *id.* at 36a-40a (discussing historical reorganization statutes). But a RIF is not a reorganization, which generally refers to an agency restructuring rather than the elimination of positions within an existing agency structure. *Id.* at 2a (order separately addressing RIFs and reorganizations in Sections 3(c) and (e)); *id.* at 7a (memo separately addressing RIFs and proposals to “eliminate[] or consolidate[]” agency components). (Thus, while a RIF can be conducted *because* of a “reorganization,” it can also be conducted for other reasons, such as “lack of work” or “shortage of funds,” 5 C.F.R. 351.201(a)(2); see, *e.g.*, 5 U.S.C. 5361(7), which proves that they are distinct forms of action.) Setting semantics aside, the key point is that neither the Executive Order nor the Memo directs any reorganizations or other actions that would conflict with agencies’ statutory mandates. App., *infra*, 2a (order requiring reorganization plans to “identif[y] any statutes that establish the agency, or subcomponents of the agency, as statutorily required entities”); *id.* at 5a-6a. Unsurprisingly, neither respondents nor the district court identified any ongoing or impending reorganizations that actually exceed statutory strictures. There is nothing unlawful about agency RIFs that facilitate the restructuring of agencies within the organizational bounds imposed by statute.²

² The district court suggested the Executive Order raises statutory concerns because it contemplates “large-scale” RIFs. App., *infra*, 41a; see *id.* at 2a. But RIFs, like analogous layoffs in the private sector, are often large-scale by their nature, see pp. 8-9, *supra* (discussing RIFs after World War II and President Clinton’s 1993 order

The district court faulted OPM and OMB for exceeding their authority by unilaterally ordering agencies to carry out RIFs. App., *infra*, 43a. Yet even a cursory read of the Memo shows it does no such thing; instead, it provides guidance to agencies as they, pursuant to the Executive Order, develop their own plans for RIFs and consider changes to their own organizational structures. See *id.* at 4a-10a. That the Memo directs agencies to submit their RIF Plans for review and approval does not mean that OPM and OMB have usurped the agencies’ lawful role, any more than OPM’s longstanding RIF regulations exceed that office’s proper role. Agencies are directed to prepare large-scale RIFs by the President’s Executive Order, and the Memo permissibly provides the agencies with guidance on implementing that directive.

With little analysis, the district court also concluded that OPM and OMB likely “engaged in rule-making without notice and comment required by the APA, in issuing the [Memo] and in approving the [Plans].” App., *infra*, 47a. But in addition to respondents’ failure to identify final agency action subject to APA review, see pp. 19-20, *supra*, neither the Memo nor Plan approvals constitute rules under the APA—or, more precisely, under 5 U.S.C. 1103(b), which requires notice for certain OPM rules. See *Fund for Animals, Inc. v. United States Bureau of Land Mgmt.*, 460 F.3d 13, 20 (D.C. Cir. 2006) (agency’s “planning document * * * is not a ‘rule’” under 5 U.S.C. 551(4)); cf. 5 U.S.C. 553(a)(2) (exempting from APA rulemaking procedures “a matter relating to agency management or personnel”).

of a 4-percent reduction in the federal workforce), and federal law explicitly recognizes that they will sometimes involve “the separation of a significant number of employees,” 5 U.S.C. 3502(d)(1)(B); see 5 C.F.R. 351.803(b). A large RIF that comports with the agency’s statutory structure and function is just as lawful as a small one.

3. At a minimum, the injunction is overbroad

This Court should independently stay the order due to its indefensible scope: it sweeps far more broadly than is necessary or permissible. This Court has repeatedly enunciated the constitutional and equitable principle that relief must be limited to redressing the specific plaintiff’s injury. See *Gill v. Whitford*, 585 U.S. 48, 66 (2018); *Califano v. Yamasaki*, 442 U.S. 682, 702 (1979). Providing relief to nonparties exceeds “the power of Article III courts,” conflicts with “longstanding limits on equitable relief,” and imposes a severe “toll on the federal court system.” *Trump v. Hawaii*, 585 U.S. 667, 713 (2018) (Thomas, J., concurring); see *DHS v. New York*, 140 S. Ct. 599, 599-601 (2020) (Gorsuch, J., concurring in the grant of stay); Appl. at 15-28, *Trump v. CASA, Inc.*, No. 24A884 (Mar. 13, 2023). By the same token, “a court must tailor equitable relief to redress the [plaintiffs’] alleged injuries without burdening the defendant more than necessary.” *Department of Educ. v. Louisiana*, 603 U.S. 866, 873 (2024) (Sotomayor, J., dissenting in part from denial of applications for stays) (citing *Madsen v. Women’s Health Ctr., Inc.*, 512 U.S. 753, 765 (1994), and *Yamasaki*, 442 U.S. at 702).

The district court’s order contravenes those bedrock principles. The court openly acknowledged that its order would “provide relief beyond the named parties,” but it claimed that “to do otherwise is impracticable and unworkable, particularly where the agencies’ RIF plans largely remain secret.” App., *infra*, 49a. But that approach gets things entirely backwards: It is respondents’ burden, not the government’s, to justify the scope of the injunctive relief sought and identify those parties

that actually face imminent harm absent such relief; and it is up to the government, not the district court, to determine whether complying with a properly limited injunction is sufficiently unworkable that it should choose to extend broader relief to make it easier to comply. See *Arizona v. Biden*, 40 F.4th 375, 398 (6th Cir. 2022) (Sutton, C.J., concurring) (“that is initially the National Government’s problem, not ours”).

B. The Remaining Stay Factors Strongly Favor The Government

This Court’s other stay factors also point decisively in favor of staying the district court’s order enjoining the implementation of the Executive Order and Memo.

1. This Court would likely grant certiorari

The issues presented in this case are worthy of this Court’s review under its traditional certiorari criteria. See *John Does 1-3 v. Mills*, 142 S. Ct. 17, 18 (2021) (Barrett, J., concurring in denial of application for injunctive relief); Sup. Ct. R. 10. This Court has repeatedly intervened—both recently and historically—in cases in which lower courts, like the district court here, have attempted to direct the functioning of the Executive Branch—let alone on the global scale at issue here. See, e.g., *Office of Personnel Mgmt. v. American Fed’n of Gov’t Emps.*, No. 24A904 (Apr. 8, 2025) (granting stay of district-court order requiring reinstatement of probationary employees); *Department of Educ. v. California*, 145 S. Ct. 966, 968-969 (2025) (per curiam) (granting stay of district-court order requiring payment of education grants); *Heckler v. Lopez*, 463 U.S. 1328, 1329-1330 (1983) (Rehnquist, J., in chambers) (granting stay of district-court order requiring Secretary of Health and Human Services “immediately to reinstate benefits to the applicants” and mandating that the Secretary then make certain showings “before terminating benefits”); cf. *Trump v. Sierra Club*, 140 S. Ct. 1 (2019) (granting stay of district-court order enjoining the Department of De-

fense from undertaking any border-wall construction using funding the Acting Secretary transferred pursuant to statutory authority); *INS v. Legalization Assistance Project*, 510 U.S. 1301, 1305-1306 (1993) (O'Connor, J., in chambers) (granting stay of district-court order requiring INS to engage in certain immigration procedures, as “an improper intrusion by a federal court into the workings of a coordinate branch of the Government”).

The district court’s novel imposition of limits on the President’s ability to control executive agencies in exercising their power over personnel is the same type of important question of federal law that warrants this Court’s review. See pp. 5, 21-22, *supra*. Furthermore, the court’s analysis of the question of CSRA and FSLMRS preclusion conflicts with the views of several other courts, including the D.C. Circuit. See p. 17, *supra*. That underscores the likelihood that this Court would grant certiorari in this case.

2. The district court’s order inflicts irreparable harm on the government and the public interest

The government is also being significantly and irreparably harmed by the district court’s order, and those harms outweigh those asserted by respondents.

a. The district court’s order strikes at critical governmental interests by barring the implementation of agency RIFs pursuant to the Executive Order and Memo and seriously hampering agencies’ control over their own administration. As this Court has observed, “the Government has traditionally been granted the widest latitude” in personnel matters and “the ‘dispatch of its own internal affairs.’” *Sampson v. Murray*, 415 U.S. 61, 83 (1974) (citation omitted); see *id.* at 83-84 (discussing “the traditional unwillingness of courts of equity to enforce contracts for personal service either at the behest of the employer or of the employee” and other “fac-

tors cutting against the general availability of preliminary injunctions in Government personnel cases”); *National Aeronautics & Space Admin. v. Nelson*, 562 U.S. 134, 151 (2011) (noting “the Government’s interests in managing its internal operations”). Applicants likewise have a strong interest in safeguarding the public fisc. See *Mathews v. Eldridge*, 424 U.S. 319, 348 (1976). A district-court order broadly barring almost the entire Executive Branch from acting to manage the size of its workforce gravely hinders governmental interests of a high order.

More concretely, the immediate consequences of the district court’s order are stark, even focusing just on the two- to four-week period while the order is nominally framed as a TRO rather than a preliminary injunction. The order has disrupted and brought to a halt a complex, government-wide effort—which began with the President’s Executive Order more than three months ago—to plan, prepare for, and execute agency RIFs. The order enjoins more than 20 executive-branch entities, and “any other individuals acting under their authority or the authority of the President,” from further implementing the Executive Order and Memo, including by carrying out any existing RIF notices or approving and issuing any new RIF notices. App., *infra*, 50a.

Dozens of RIF actions affecting thousands of federal employees thus will be delayed and disrupted if the court’s order remains in effect. D. Ct. Doc. 1, at 53-67 (Apr. 28, 2025) (complaint describing in-progress RIFs). In fact, this Office has been informed by OPM that about 40 RIFs in 17 agencies were in progress and are currently enjoined by the TRO. The inevitable consequence is to compel federal agencies to keep large numbers of employees on the payroll without necessity, at unrecoverable taxpayer expense, thereby frustrating the government’s efforts to impose budgetary discipline and build a more efficient workforce. See App., *infra*, 4a (“The federal

government is costly, inefficient, and deeply in debt.”). This Court has expressed concern about the intrusion inflicted by a court order directing the reinstatement of a *single* government employee, see *Sampson*, 415 U.S. at 91-92; it follows that an order freezing much larger layoffs unquestionably inflicts substantial and irreparable injury on the government as an employer and steward of public funds. Furthermore, because the order broadly enjoins implementation of the Executive Order’s directive to prepare for RIFs, it has sown confusion throughout the Executive Branch over what internal administrative and planning actions agencies are permitted to undertake consistent with the order’s terms.

The fiscal and administrative harms inflicted by the district court’s order amply justify a stay. See, e.g., *Department of Educ.*, 145 S. Ct. 966 (stay granted where TRO permitted potentially unrecoverable drawdowns of \$65 million in grant funds); *Heckler v. Turner*, 468 U.S. 1305, 1307-1308 (1984) (Rehnquist, J., in chambers) (prospect of the government being forced to make \$1.3 million in improper payments per month supported a stay). This Court’s immediate intervention is necessary, moreover, because there is little prospect of sufficiently prompt relief from the courts below. The district court declined to impose any injunction bond, see App., *infra*, 51a, and it has already opened the door to an extension of its order beyond the default two weeks for TROs, *id.* at 50a, which would keep the order in effect into June. And the Ninth Circuit has entered a briefing schedule on applicants’ stay motion that will not finish until May 22—a day before the TRO is set to expire unless extended. Absent an immediate stay, applicants’ RIF plans and actions will likely remain on hold and in disarray for weeks to come.

b. Respondents’ assertions of irreparable injury do not outweigh applicants’. The district court primarily rested its contrary finding on the prospect of

members of respondent unions being subjected to RIFs and laid off. App., *infra*, 23a, 48a. That form of injury is by no means irreparable, however, because employees can seek reinstatement and backpay through the proper channels. See pp. 15-16, *supra*; *Sampson*, 415 U.S. at 91-92 (such injury “falls far short of the type of irreparable injury which is a necessary predicate to the issuance of a temporary injunction in this type of case”); see also *Smith v. Department of the Army*, 89 M.S.P.R. 82, 83 (2001) (noting remedial actions for life and health insurance for federal employee reinstated after RIF). That this case implicates more than “one individual employee,” as the district court emphasized, App., *infra*, 48a, does not render the exact same type of injury, multiplied across the population of potentially affected employees, irreparable.

The district court also cross-referenced its findings with respect to other respondents’ Article III standing, in which the court highlighted the possibilities that certain federal contract facilities may close as a result of RIFs, services by federal agencies may be delayed, local-government tax bases may be reduced, and the like. App., *infra*, 23a-27a, 47a-48a. Even assuming that those asserted speculative, indirect, downstream harms sufficed for standing, which they do not, irreparable injury for purposes of injunctive relief requires more. See *Monsanto Co. v. Geertson Seed Farms*, 561 U.S. 139, 162 (2010). And if the employees who face RIFs are not themselves entitled to injunctive relief as an equitable matter, it would turn equity on its head to grant injunctive relief based on more remote harms to third parties claiming that they are indirectly affected by the employees’ treatment.

For the foregoing reasons, this Court should stay the district court’s order enjoining the implementation of the Executive Order and the Memo.

II. THIS COURT SHOULD STAY THE DISTRICT COURT'S DISCOVERY ORDER

Along with allowing the implementation of the Executive Order and Memo to proceed, this Court should also stay the provision of the district court's order compelling disclosure of various highly sensitive RIF-related documents submitted between agencies and OPM and OMB. As noted, p. 13, *supra*, applicants have filed a mandamus petition in the court of appeals seeking to vacate the discovery order on the ground that the materials at issue are protected by the deliberative-process component of executive privilege. "To obtain a stay pending the * * * disposition of a petition for a writ of mandamus, an applicant must show a fair prospect that a majority of the Court will vote to grant mandamus and a likelihood that irreparable harm will result from the denial of a stay." *Hollingsworth, supra*, 558 U.S. at 190. "Before a writ of mandamus may issue, a party must establish that (1) 'no other adequate means exist to attain the relief he desires,' (2) the party's 'right to issuance of the writ is 'clear and indisputable,'" and (3) 'the writ is appropriate under the circumstances.'" *Ibid.* (quoting *Cheney v. United States Dist. Ct.*, 542 U.S. 367, 380-381 (2004)) (brackets omitted). Applicants satisfy those standards.

A. Applicants' entitlement to mandamus is clear and indisputable. The deliberative-process component of executive privilege shields from disclosure government documents that are "predecisional," meaning "they were generated before the agency's final decision on the matter," and "deliberative," meaning "they were prepared to help the agency formulate its position." *United States Fish & Wildlife Serv. v. Sierra Club, Inc.*, 592 U.S. 261, 268 (2021). That test is clearly met for all of the materials the district court's order requires to be produced: "(1) the versions of all defendant agency [RIF Plans] submitted to OMB and OPM, (2) the versions of all

defendant agency [RIF Plans] approved by OMB and OPM, (3) any agency applications for waivers of statutorily-mandated RIF notice periods, and (4) any responses by OMB or OPM to such waiver requests.” App., *infra*, 50a. After all, whether before or after they are “approved” by OPM and OMB, the RIF Plans are still just *plans* setting forth potential future agency decisions and policies regarding RIFs and restructuring. See D. Ct. Doc. 88-1, at 1 (May 11, 2025) (Declaration of Stephen M. Billy, Senior Advisor for OMB) (explaining that the RIF Plans are “living documents that are always subject to change” and “lack any immediate force and effect”). Likewise, any waiver requests and responses, by definition, constitute part of an internal governmental decision-making process. So all of those materials simply “reflect[]” “opinions” and “recommendations” that “compris[e] part of a process by which governmental decisions and policies are formulated.” *NLRB v. Sears, Roebuck & Co.*, 421 U.S. 132, 150 (1975) (citation and internal quotation marks omitted).

To be sure, “[t]he deliberative process privilege is a qualified privilege and can be overcome by a sufficient showing of need.” *In re Sealed Case*, 121 F.3d 729, 737 (D.C. Cir. 1997). The relevant factors in that analysis include “the relevance of the evidence, the availability of other evidence, the seriousness of the litigation, the role of the government, and the possibility of future timidity by government employees.” *Id.* at 737-738 (internal quotation marks omitted). But in ordering production, the district court did not even acknowledge that the documents in question were deliberative materials, let alone conduct the necessary analysis. See App., *infra*, 49a-50a. Indeed, the court ordered production in the absence of any formal discovery request and briefing, based solely on respondents’ requests in connection with the TRO briefing and hearing, Gov’t C.A. Mandamus Pet. 11, notwithstanding that applicants made clear that the RIF Plans were “deliberative agency planning documents,” D. Ct.

Doc. 60, at 21 (May 7, 2025).

Relatedly, even if the court had performed the required analysis, the presumption of deliberative-process privilege would not have been overcome. Respondents did not even request some of the relevant materials (such as the agency requests for RIF notice exemptions), and the contents of individual agency RIF Plans (let alone all versions of the Plans) have little relevance to respondents' challenge to the Executive Order and Memo. See Gov't C.A. Mandamus Pet. 11. To be sure, the district court has since tried to cure its grossly deficient process, by staying the discovery order pending briefing on applicants' motion for reconsideration or a protective order, D. Ct. Doc. 92 (May 12, 2025), and then ordering a limited disclosure to just the court and respondents' counsel pending further proceedings, D. Ct. Doc. 109 (May 15, 2025). But the court reserved the option of reinstating its prior discovery order or allowing wider disclosure at any time "the Court orders." See *id.* at 5. And for the reasons discussed, if the court ultimately orders disclosure of these materials, that would be the type of clear and indisputable error that warrants mandamus relief.

B. In these circumstances, the remaining requirements for a stay are also satisfied. Given the irreversibility of disclosure, appeal after judgment obviously does not provide applicants with an adequate substitute to mandamus for obtaining relief from the district court's order. See *In re von Bulow*, 828 F.2d 94, 98 (2d Cir. 1987). For much the same reason, appellate courts commonly view mandamus as an appropriate vehicle for seeking interlocutory review of district-court discovery orders—particularly in cases involving orders compelling government disclosures and discovery, which necessarily raise separation-of-powers concerns as well. See *Cheney*, 542 U.S. at 382; see also, *e.g.*, *In re United States*, 583 U.S. 29 (2017) (per curiam).

Furthermore, applicants have demonstrated more than a likelihood of irrepa-

rable harm if the pertinent documents are disclosed. Agencies' RIF Plans contain "highly sensitive information that would seriously undermine agency operations if they were released." D. Ct. Doc. 88-1, at 1. "Such information includes strategies for agency negotiations with unions; plans and strategies for personnel reorganization that may or may not materialize, but might seriously hurt agency recruitment and retention if released; plans and strategies regarding present and future regulatory changes; plans and strategies for present and future appropriations requests; plans and strategies for congressional engagement; and plans and strategies for agency IT management." *Ibid.* For example, the irreparable injury from disclosing "strategies for agency negotiations with unions," *ibid.*, to those very unions, speaks for itself.

To the extent that the likelihood of certiorari bears on applicants' entitlement to a stay pending mandamus, that factor supports relief as well. This Court has previously granted certiorari to consider the government's entitlement to mandamus relief from discovery orders infringing on executive-branch confidentiality interests. See *Cheney*, 542 U.S. at 378; *In re United States*, 583 U.S. at 31. The Court would likely do the same here.

III. AN ADMINISTRATIVE STAY IS WARRANTED

Finally, the Solicitor General respectfully requests that this Court grant an administrative stay of the district court's May 9 order while the Court considers this application. Every day that the district court's order remains in effect, a government-wide program to implement agency RIFs is being halted and delayed, maintaining a bloated and inefficient workforce while wasting countless taxpayer dollars. In addition, the district court could at any moment reinstate its order for the government to disclose internal executive-branch documents that are protected by the deliberative-process privilege, potentially without sufficient time for the government to seek relief

from this Court. In these circumstances, an administrative stay is warranted while this Court assesses the government's entitlement to a stay.

CONCLUSION

This Court should stay the district court's order of May 9, 2025, granting respondents' motion for a TRO against the Executive Order and Memo and requiring disclosure of privileged RIF-related documents. In addition, the Solicitor General respectfully requests an immediate administrative stay of the district court's order pending the Court's consideration of this application.

Respectfully submitted.

D. JOHN SAUER
Solicitor General

MAY 2025

APPENDIX

Executive Order No. 14,210 (Feb. 11, 2025)	1a
Memorandum, <i>Guidance on Agency RIF and Reorganization Plans</i> <i>Requested by</i> Implementing the President’s “Department of Government Efficiency” Workforce Optimization Initiative (Feb. 26, 2025)	4a
District court order granting temporary restraining order and compelling discovery (N.D. Cal. May 9, 2025)	11a

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Friday, February 14, 2025

Presidential Documents

Title 3—

Executive Order 14210 of February 11, 2025

The President

Implementing the President’s “Department of Government Efficiency” Workforce Optimization Initiative

By the authority vested in me as President by the Constitution and the laws of the United States of America, it is hereby ordered:

Section 1. Purpose. To restore accountability to the American public, this order commences a critical transformation of the Federal bureaucracy. By eliminating waste, bloat, and insularity, my Administration will empower American families, workers, taxpayers, and our system of Government itself.

Sec. 2. Definitions. (a) “Agency” has the meaning given to it in section 3502 of title 44, United States Code, except that such term does not include the Executive Office of the President or any components thereof.

(b) “Agency Head” means the highest-ranking official of an agency, such as the Secretary, Administrator, Chairman, or Director, unless otherwise specified in this order.

(c) “DOGE Team Lead” means the leader of the Department of Government Efficiency (DOGE) Team at each agency, as defined in Executive Order 14158 of January 20, 2025 (Establishing and Implementing the President’s “Department of Government Efficiency”).

(d) “Employee” has the meaning given to it by section 2105 of title 5, United States Code, and includes individuals who serve in the executive branch and who qualify as employees under that section for any purpose.

(e) “Immigration enforcement” means the investigation, enforcement, or assisting in the investigation or enforcement of Federal immigration law, including with respect to Federal immigration law that penalizes a person’s presence in, entry, or reentry to, or employment in, the United States, but does not include assisting individuals in applying for immigration benefits or efforts to prevent enforcement of immigration law or to prevent deportation or removal from the United States.

(f) “Law enforcement” means:

(i) engagement in or supervision of the prevention, detection, investigation, or prosecution of, or the incarceration of any person for, any violation of law; or

(ii) the protection of Federal, State, local, or foreign government officials against threats to personal safety.

(g) “Temporary employee” has the meaning given to it in 5 C.F.R. part 316.

(h) “Reemployed annuitant” has the meaning given to it in 5 C.F.R. part 837.

Sec. 3. Reforming the Federal Workforce to Maximize Efficiency and Productivity. (a) *Hiring Ratio.* Pursuant to the Presidential Memorandum of January 20, 2025 (Hiring Freeze), the Director of the Office of Management and Budget shall submit a plan to reduce the size of the Federal Government’s workforce through efficiency improvements and attrition (Plan). The Plan shall require that each agency hire no more than one employee for every four employees that depart, consistent with the plan and any applicable exemptions and details provided for in the Plan. This order does not affect the standing freeze on hiring as applied to the Internal Revenue Service. This ratio shall not apply to functions related to public safety, immigration

enforcement, or law enforcement. Agency Heads shall also adhere to the Federal Hiring Plan that will be promulgated pursuant to Executive Order 14170 of January 20, 2025 (Reforming the Federal Hiring Process and Restoring Merit to Government Service).

(b) *Hiring Approval.* Each Agency Head shall develop a data-driven plan, in consultation with its DOGE Team Lead, to ensure new career appointment hires are in highest-need areas.

(i) This hiring plan shall include that new career appointment hiring decisions shall be made in consultation with the agency's DOGE Team Lead, consistent with applicable law.

(ii) The agency shall not fill any vacancies for career appointments that the DOGE Team Lead assesses should not be filled, unless the Agency Head determines the positions should be filled.

(iii) Each DOGE Team Lead shall provide the United States DOGE Service (USDS) Administrator with a monthly hiring report for the agency.

(c) *Reductions in Force.* Agency Heads shall promptly undertake preparations to initiate large-scale reductions in force (RIFs), consistent with applicable law, and to separate from Federal service temporary employees and reemployed annuitants working in areas that will likely be subject to the RIFs. All offices that perform functions not mandated by statute or other law shall be prioritized in the RIFs, including all agency diversity, equity, and inclusion initiatives; all agency initiatives, components, or operations that my Administration suspends or closes; and all components and employees performing functions not mandated by statute or other law who are not typically designated as essential during a lapse in appropriations as provided in the Agency Contingency Plans on the Office of Management and Budget website. This subsection shall not apply to functions related to public safety, immigration enforcement, or law enforcement.

(d) *Rulemaking.* Within 30 days of the date of this order, the Director of the Office of Personnel Management (OPM) shall initiate a rulemaking that proposes to revise 5 C.F.R. 731.202(b) to include additional suitability criteria, including:

(i) failure to comply with generally applicable legal obligations, including timely filing of tax returns;

(ii) failure to comply with any provision that would preclude regular Federal service, including citizenship requirements;

(iii) refusal to certify compliance with any applicable nondisclosure obligations, consistent with 5 U.S.C. 2302(b)(13), and failure to adhere to those compliance obligations in the course of Federal employment; and

(iv) theft or misuse of Government resources and equipment, or negligent loss of material Government resources and equipment.

(e) *Developing Agency Reorganization Plans.* Within 30 days of the date of this order, Agency Heads shall submit to the Director of the Office of Management and Budget a report that identifies any statutes that establish the agency, or subcomponents of the agency, as statutorily required entities. The report shall discuss whether the agency or any of its subcomponents should be eliminated or consolidated.

(f) Within 240 days of the date of this order, the USDS Administrator shall submit a report to the President regarding implementation of this order, including a recommendation as to whether any of its provisions should be extended, modified, or terminated.

Sec. 4. Exclusions. (a) This order does not apply to military personnel.

(b) Agency Heads may exempt from this order any position they deem necessary to meet national security, homeland security, or public safety responsibilities.

(c) The Director of OPM may grant exemptions from this order where those exemptions are otherwise necessary and shall assist in promoting workforce reduction.

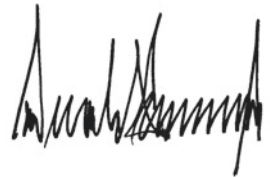
Sec. 5. General Provisions. (a) Nothing in this order shall be construed to impair or otherwise affect:

(i) the authority granted by law to an executive department, agency, or the head thereof; or

(ii) the functions of the Director of the Office of Management and Budget relating to budgetary, administrative, or legislative proposals.

(b) This order shall be implemented consistent with applicable law and subject to the availability of appropriations.

(c) This order is not intended to, and does not, create any right or benefit, substantive or procedural, enforceable at law or in equity by any party against the United States, its departments, agencies, or entities, its officers, employees, or agents, or any other person.

A handwritten signature in black ink, appearing to be "Donald Trump", located on the right side of the page.

THE WHITE HOUSE,
February 11, 2025.



U.S. Office of
Management and Budget

U.S. Office of
Personnel Management



MEMORANDUM

TO: Heads of Executive Departments and Agencies

FROM: Russell T. Vought, Director, Office of Management and Budget;
Charles Ezell, Acting Director, Office of Personnel Management.

DATE: February 26, 2025

RE: Guidance on Agency RIF and Reorganization Plans Requested by
*Implementing The President's "Department of Government
Efficiency" Workforce Optimization Initiative*

I. Background

The federal government is costly, inefficient, and deeply in debt. At the same time, it is not producing results for the American public. Instead, tax dollars are being siphoned off to fund unproductive and unnecessary programs that benefit radical interest groups while hurting hard-working American citizens.

The American people registered their verdict on the bloated, corrupt federal bureaucracy on November 5, 2024 by voting for President Trump and his promises to sweepingly reform the federal government.

On February 11, 2025, President Trump's Executive Order *Implementing The President's "Department of Government Efficiency" Workforce Optimization Initiative (Workforce Optimization)* "commence[d] a critical transformation of the Federal bureaucracy." It directed agencies to "eliminat[e] waste, bloat, and insularity" in order to "empower American families, workers, taxpayers, and our system of Government itself."

President Trump required that "Agency Heads shall promptly undertake preparations to initiate large-scale reductions in force (RIFs), consistent with applicable law." President Trump also directed that, **no later than March 13, 2025**, agencies develop Agency Reorganization Plans.

The U.S. Office of Management and Budget ("OMB") and the U.S. Office of Personnel Management ("OPM") now submit guidance on these Agency RIF and Reorganization Plans ("ARRP"), along with the instruction that such plans be submitted to OMB and OPM.

II. Principles to Inform ARRP

ARRPs should seek to achieve the following:

1. Better service for the American people;

2. Increased productivity;
3. A significant reduction in the number of full-time equivalent (FTE) positions by eliminating positions that are not required;
4. A reduced real property footprint; and
5. Reduced budget topline.

Pursuant to the President’s direction, agencies should focus on the maximum elimination of functions that are not statutorily mandated while driving the highest-quality, most efficient delivery of their statutorily-required functions.

Agencies should also seek to consolidate areas of the agency organization chart that are duplicative; consolidate management layers where unnecessary layers exist; seek reductions in components and positions that are non-critical; implement technological solutions that automate routine tasks while enabling staff to focus on higher-value activities; close and/or consolidate regional field offices to the extent consistent with efficient service delivery; and maximally reduce the use of outside consultants and contractors. When taking these actions, agencies should align closures and/or relocation of bureaus and offices with agency return-to-office actions to avoid multiple relocation benefit costs for individual employees.

Agencies should review their statutory authority and ensure that their plans and actions are consistent with such authority.

Agency heads should collaborate with their Department of Government Efficiency (“DOGE”) team leads within the agency in developing competitive areas for ARRs. In addition, the agency should specifically identify competitive areas that include positions not typically designated as essential during a lapse in appropriations. When making this determination, agencies should refer to the functions that are excepted from the Antideficiency Act (ADA) in the Agency Contingency Plans submitted to OMB in 2019 as the starting point for making this determination.

III. Available Tools

In their ARRs, agencies should employ all available tools to effectuate the President’s directive for a more effective and efficient government and describe how they will use each. Such tools include:

1. Continuing to comply with the hiring freeze outlined in the January 20, 2025 Presidential Memorandum *Hiring Freeze* or (with approval of OPM and OMB) implementing the general principle that, subject to appropriate exemptions, no more than one employee should be hired for every four employees that depart;
2. Establishing internal processes that ensure agency leadership has visibility and/or direct sign-off on all potential job offers and candidates prior to extending offers;

3. Eliminating non-statutorily mandated functions through RIFs (Appendix 1 contains a sample timeline);
4. Removing underperforming employees or employees engaged in misconduct, and continuing to evaluate probationary employees;
5. Reducing headcount through attrition and allowing term or temporary positions to expire without renewal;
6. Separating reemployed annuitants in areas likely subject to RIFs; and
7. Renegotiating provisions of collective bargaining agreements (CBAs) that would inhibit enhanced government efficiency and employee accountability.

ARRPs should also list the competitive areas for large-scale reductions in force, the RIF effective dates (which may be a date prior to when the plan is submitted), the expected conclusion of the RIFs, the number of FTEs reduced, and additional impact of RIFs such as cancellation of related contracts, leases or overhead.

Agencies should also closely consider changes to regulations and agency policies, including changes that must be pursued through notice-and-comment rulemaking, that would lead to the reduction or elimination of agency subcomponents or speed up the implementation of ARRs.

IV. Phase 1 ARRs

Each agency will submit a Phase 1 ARRs to OMB and OPM for review and approval **no later than March 13, 2025**. Phase 1 ARRs shall focus on initial agency cuts and reductions. Each Phase 1 ARR should identify:

1. A list of agency subcomponents or offices that provide direct services to citizens. Such subcomponents or offices should be included in ARRs to improve services to citizens while eliminating costs and reducing the size of the federal government. But for service delivery subcomponents or offices, implementation shall not begin until certified by OMB and OPM as resulting in a positive effect on the delivery of such services.
2. Any statutes that establish the agency, or subcomponents of the agency, as statutorily required entities. Agency leadership must confirm statutes have not been interpreted in a way that expands requirements beyond what the statute actually requires. Instead, statutes should be interpreted to cover only what functions they explicitly require.
3. All agency components and employees performing functions not mandated by statute or regulation who are not typically designated as essential during a lapse in appropriations (because the functions performed by such employees do not fall under an exception to the ADA) using the Agency Contingency Plans submitted to OMB in 2019 referenced above.

4. Whether the agency or any of its subcomponents should be eliminated or consolidated; and which specific subcomponents or functions, if any, should be expanded to deliver on the President's priorities.
5. The specific tools the agency intends to use to achieve efficiencies, including, as to each, the number of FTEs reduced and any potential savings or costs associated with such actions in Fiscal Years 2025, 2026 and 2027:
 - a. Continuation of the current hiring freeze;
 - b. Regular attrition (e.g., retirement, movement between agencies and the private sector);
 - c. Attrition through enhanced policies governing employee performance and conduct;
 - d. Attrition through the termination or non-renewal of term or limited positions or reemployed annuitants;
 - e. Attrition achieved by RIFs. Please refer to Appendix 1 for specific steps and timing. For purposes of the Phase 1 ARRP, the agency should include the following information:
 - i. The competitive areas and organizational components that the agency has targeted or will target for initial RIFs, and
 - ii. The agency's target for reductions in FTE positions via RIFs.
6. A list by job position of all positions categorized as essential for purposes of exclusion from large-scale RIFs, including the number per each job position and total by agency and subcomponent.
7. The agency's suggested plan for congressional engagement to gather input and agreement on major restructuring efforts and the movement of fundings between accounts, as applicable, including compliance with any congressional notification requirements.
8. The agency's timetable and plan for implementing each part of its Phase 1 ARRP.

V. Phase 2 ARRPs

Agencies should then submit a Phase 2 ARRP to OMB and OPM for review and approval **no later than April 14, 2025**. Phase 2 plans shall outline a positive vision for more productive, efficient agency operations going forward. Phase 2 plans should be planned for implementation by September 30, 2025. The Phase 2 plan should include the following additional information:

1. The agency's proposed future-state organizational chart with its functional areas, consolidated management hierarchy, and position titles and counts clearly depicted.
2. Confirmation that the agency has reviewed all personnel data, including each employee's official position description, four most recent performance ratings of record, retention service computation date, and veterans' preference status.

3. The agency's plan to ensure that employees are grouped, to the greatest extent possible, based on like duties and job functions to promote effective collaboration and management, and that the agency's real estate footprint is aligned with cross-agency efforts coordinated by GSA to establish regional federal office hubs.
4. Any proposed relocations of agency bureaus and offices from Washington, D.C. and the National Capital Region to less-costly parts of the country.
5. The competitive areas for subsequent large-scale RIFs.
6. All reductions, including FTE positions, term and temporary positions, reemployed annuitants, real estate footprint, and contracts that will occur in relation to the RIFs.
7. Any components absorbing functions, including how this will be achieved in terms of FTE positions, funding, and space.
8. The agency's internal processes that ensure agency leadership has visibility and/or direct sign-off on all potential job offers and candidates prior to extending offers.
9. The agency's data-driven plan to ensure new career appointment hires are in highest-need areas and adhere to the general principle that, subject to appropriate exemptions, no more than one employee should be hired for every four employees that depart. Until the agency has finalized its post-hiring-freeze plan, agencies should continue to adhere to the current hiring freeze.
10. Any provisions of collective bargaining agreements that would inhibit government efficiency and cost-savings, and agency plans to renegotiate such provisions.
11. An explanation of how the ARRP will improve services for Americans and advance the President's policy priorities.
12. The framework and criteria the agency has used to define and determine efficient use of existing personnel and funds to improve services and the delivery of these services.
13. For agencies that provide direct services to citizens (such as Social Security, Medicare, and veterans' health care), the agency's certification that implementation of the ARRP will have a positive effect on the delivery of such services. The certification should include a written explanation from the Agency Head and, where appropriate, the agency's CIO and any relevant program manager.
14. The programs and agency components not impacted by the ARRP, and the justification for any exclusion.

15. Plans to reduce costs and promote efficiencies through improved technology, including through the adoption of new software or systems, and elimination of duplicative systems.
16. Any changes to regulations and agency policies, including changes that must be pursued through notice-and-comment rulemaking, that would lead to the reduction or elimination of agency subcomponents, or speed up implementation of ARRP.
17. The agency's timetable and plan for implementing each part of its Phase 2 ARRP, and its plan for monitoring and accountability in implementing its ARRP.

Agencies should continue sending monthly progress reports each month on May 14, 2025, June 16, 2025, and July 16, 2025. All plans and reports requested by this memorandum should be submitted to OPM at tracking@opm.gov and OMB at workforce@omb.eop.gov; when submitting plans and reports, please ensure both OPM and OMB addresses are included on the message.

VI. Exclusions

Nothing in this memorandum shall have any application to:

1. Positions that are necessary to meet law enforcement, border security, national security, immigration enforcement, or public safety responsibilities;
2. Military personnel in the armed forces and all Federal uniformed personnel, including the U.S. Coast Guard, the Commissioned Corps of the U.S. Public Health Service, and the Commissioned Officer Corps of the National Oceanic and Atmospheric Administration;
3. Officials nominated and appointed to positions requiring Presidential appointment or Senate confirmation, non-career positions in the Senior Executive Service or Schedule C positions in the excepted service, officials appointed through temporary organization hiring authority pursuant to 5 U.S.C. § 3161, or the appointment of any other non-career employees or officials, if approved by agency leadership appointed by the President;
4. The Executive Office of the President; or
5. The U.S. Postal Service.

Finally, agencies or components that provide direct services to citizens (such as Social Security, Medicare, and veterans' health care) shall not implement any proposed ARRP until OMB and OPM certify that the plans will have a positive effect on the delivery of such services.

cc: Chief Human Capital Officers ("**CHCOs**"), Deputy CHCOs, Human Resources Directors, Chiefs of Staff, and DOGE team leads.

Appendix 1- Sample RIF Timeline

This sample timeline is prepared in accordance with the U.S. Office of Personnel Management [Workforce Reshaping Operations Handbook](#). RIF timing may vary based on agency-specific requirements, collective bargaining agreements, and workforce considerations. Agencies can accelerate these timelines through parallel processing, securing OPM waivers to policy, expediting process steps, and streamlining stakeholder coordination.

Step 1: Identification of Competitive Areas and Levels (by March 13, 2025 for Phase 1 ARRs)

1. Identify competitive areas and levels and determine which positions may be affected. If applicable, seek OPM waiver approval to adjust competitive areas within 90 days of the RIF effective date.
2. For Phase 1 ARRs, this step should be completed no later than March 13, 2025.

Step 2: Planning, Preparation & Analysis (up to 30 days)

1. Explore use of VSIP/VERA.
2. Conduct an impact assessment.
3. Review position descriptions for accuracy, validate competitive levels, and verify employee retention data (e.g., veteran preference, service computation dates).
4. Develop retention register.
5. Draft RIF notices and seek OPM waiver approval for a 30-day notification period.
6. Develop transition materials.
7. Notify unions (if required).
8. Prepare congressional notification (if required).

Step 3: Formal RIF Notice Period (60 days, shortened to 30 days with an OPM waiver)

1. Issue official RIF notices.
2. Provide employees with appeal rights, career transition assistance, and priority placement options.
3. Execute any required congressional notification and notice to the Department of Labor, state, and local officials, if applicable.

Step 4: RIF Implementation & Separation (Final Step)

1. Officially implement separations, reassignments, or downgrades.
2. Provide final benefits counseling, exit processing, and documentation.
3. Update HR systems and notify OPM of personnel actions.